TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix C—Public Land Orders

[55619]

[Public Land Order 1115]

WYOMING

PARTIALLY REVOKING EXECUTIVE ORDER OF DECEMBER 5, 1913, CREATING PUBLIC WATER RESERVE NO. 12, WYOMING NO. 3, AND EXECUTIVE ORDER OF APRIL 17, 1926, CREATING PUBLIC WATER RESERVE NO. 107; CORRECTION

SEPTEMBER 1, 1955.

The land description in paragraph 1 of Federal Register Document 55-3056 appearing on page 2464 of the issue for April 14, 1955, so far as such description relates to lands in Section 33, T. 40 N., R. 72 W., should read as follows:

Sec. 33, N½S½.

DEPUE FALCK,
Acting Director.

[F. R. Doc. 55-7231; Filed, Sept. 7, 1955; 8:45 a. m.]

TITLE 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

[Docket No. 11436; FCC 55-869]

[Rules Amdt. 7-1]

PART 7—STATIONS ON LAND IN THE MARITIME SERVICES

STATION IDENTIFICATION

In the matter of amendment of Part 7 of the Commission's Rules to specify the procedure for identification of limited coast stations and marine utility stations utilizing radiotelephony.

At a session of the Federal Communications Commission held at its offices in Washington, D. C., on the 31st day of August 1955;

The Commission having under consideration the above-captioned matter;

It appearing, that in accordance with the requirements of Section 4 (a) of the Administrative Procedure Act, Notice of Proposed Rule Making which made provision for the submission of written comments by interested parties was duly published in the FEDERAL REGISTER on July 6, 1955 (20 F. R. 4777), and that the period provided for the filing of comments has now expired; and

It further appearing, that the American Merchant Marine Institute, Inc. filed comments in support of the proposal and no comments were received in opposition; and

It further appearing, that the public interest, convenience and necessity will be served by the amendments herein ordered, the authority for which is contained in Sections 303 (o) (p) and (r) of the Communications Act of 1934, as amended;

It is ordered, That, effective October 10, 1955, Part 7 of the Commission's Rules is amended as set forth below.

(Sec. 4, 48 Stat. 1066, as amended; 47 U. S. C. 154. Interprets or applies sec. 303, 48 Stat. 1082, as amended; 47 U. S. C. 303)

Released: September 1, 1955.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

A. Part 7 is amended as follows:

1. At the end of Subpart J, add a new § 7.372 as follows:

§ 7.372 *Station identification.* (a) All radiotelephone emissions of a limited coast station or a marine utility station shall be clearly identified by voice transmission therefrom in the English language of the official call sign assigned to that station by the Commission; provided that, in lieu of identification of the station by voice, the official call sign may be clearly transmitted by tone-modulated telegraphy in the International Morse Code either by a duly licensed radiotelegraph operator or by means of an automatic device approved for this purpose by the Commission. Identification as herein prescribed shall be made:

(1) At the beginning and upon completion of each communication with any other station;

(2) At the beginning and upon conclusion of each transmission made for any other purpose;

(3) At intervals not exceeding fifteen minutes whenever transmissions or communications are sustained for a period exceeding fifteen minutes.

[F. R. Doc. 55-7266; Filed, Sept. 7, 1955; 8:50 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF HEALTH, EDUCATION, AND WELFARE

Food and Drug Administration

[21 CFR Parts 1, 130]

ENFORCEMENT OF FEDERAL FOOD, DRUG, AND COSMETIC ACT; NEW DRUGS

NOTICE OF PROPOSED RULE MAKING

Notice is given that the Commissioner of Food and Drugs, in accordance with the Federal Food, Drug, and Cosmetic Act (secs. 505, 701, 51 Stat. 1052, 1055; 21 U. S. C. 355, 371) and the authority delegated to him by the Secretary of Health, Education, and Welfare (20 F. R. 1996) hereby offers an opportunity to all interested persons to submit their views in writing to the Hearing Clerk, Department of Health, Education, and Welfare, Room 5440, 330 Independence Avenue SW., Washington 25, D. C., within 30 days from the date of publication of this notice in the FEDERAL REGISTER, on the proposed regulations set forth below:

1. It is proposed that §§ 1.109 to 1.114, inclusive, of Part I—Regulations for the Enforcement of the Federal Food, Drug, and Cosmetic Act, be repealed.

2. It is proposed that Part 130 be redesignated as "Part 130—New Drugs"; that § 130.1 be renumbered as: "Subpart B—Drugs Exempted From Prescription-Dispensing Requirements, § 130.100 *Exemption for certain drugs limited by new-drug applications to prescription sale.*"; that Subpart A, reading as follows be added to Part 130.

PART 130—NEW DRUGS

SUBPART A—PROCEDURAL AND INTERPRETIVE REGULATIONS

Sec.
130.1 Definitions and interpretations.
130.2 Biologics; products subject to license control.
130.3 New drugs for investigational use; exemptions under section 505 (a).
130.4 Applications.
130.5 Reasons for refusing to file applications.
130.6 Initial study of applications.
130.7 Amended applications.
130.8 Withdrawal of applications without prejudice.
130.9 Supplemental applications.
130.10 Notification of applicant of effectiveness of application.
130.11 Postponing the effective date.
130.12 Refusal to permit the application to become effective.
130.13 Insufficient information in application.
130.14 Contents of notice of hearing.
130.15 Failure to file an appearance.
130.16 Appearance of respondent.
130.17 Hearing examiner.
130.18 Prehearing and other conferences.
130.19 Submission of documentary evidence in advance.
130.20 Excerpts from documentary evidence.
130.21 Submission and receipt of evidence.
130.22 Transcript of the testimony.
130.23 Oral and written arguments.
130.24 Tentative order.
130.25 Exceptions to the tentative order.
130.26 Issuance of final order.
130.27 Suspension of effective application.
130.28 Revocation of order refusing to permit application to become effective or suspending effective applications.
130.29 Service of notices and orders.
130.30 Untrue statements in applications.
130.31 Judicial review.

AUTHORITY: §§ 130.1 to 130.31 issued under secs. 505 and 701, 52 Stat. 1052, 1053, 1055; 21 U. S. C. 355, 371.

§ 130.1 *Definitions and interpretations.* (a) As used in this part, the term "act" means the Federal Food, Drug, and Cosmetic Act approved June 25, 1938 (52 Stat. 1040 et seq., as amended; 21 U. S. C. 301-392).

(b) "Department" means the Department of Health, Education, and Welfare.

(c) "Secretary" means the Secretary of Health, Education, and Welfare.

(d) "Commissioner" means the Commissioner of Food and Drugs.

(e) "New Drug Branch" means the unit established within the Food and Drug Administration charged with the administration of section 505 of the act relating to new drugs.